

26STCV06132 26STCV06132

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-08-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C316%2C08%2F07%2F2026

Source SHA-256: aa835c3d7d1b2a0e5b0c72e9b2ff34d963f81a64b2d504b7e450a468197789da

Case Number: 26STCV06132 Hearing Date: August 7, 2026 Dept: 316

BACKGROUND

On February 25, 2026,

Plaintiff Gorik Markosian filed a complaint against Defendant Volkswagen Group of America, Inc. The complaint alleges six causes of action stemming from Plaintiff's purchase of an allegedly defective vehicle.

On June 12, 2026,

Plaintiff filed a Motion for Attorney's Fees.

On June 23, 2026, the

parties filed a Notice of Settlement of Entire Case.

On July 10, 2026, Defendant

filed an opposition.

On July 28, 2026,

Plaintiff filed a reply.

TENTATIVE RULING

Plaintiff's Motion for

Attorney's Fees is GRANTED in the reduced amount of \$20,764.20 in fees and costs.

LEGAL STANDARD

Under the Song Beverley

Consumer Warranty Act, if a buyer prevails in the action, the buyer is allowed to recover costs and expenses, including attorney's fees based on actual time expended. (Civ. Code § 1794, subd. (d).)

The determination of a reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) When assessing the amount of any attorney's fee award, courts typically determine what is reasonable through the application of the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of time reasonably spent and the reasonable hourly compensation of each attorney. (See Serrano v. Priest (1977) 20 Cal.3d 25, 48); see also Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 448-449 [holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation].)

A plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) Counsel has the burden of providing the reasonable number of hours devoted to the litigation, through declarations, or redacted or unredacted timesheets or billing records. (See Concepcion v. Amscan Holdings, Inc. (2014) 223 Cal.App.4th 1309, 1325.) "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests the Court take judicial notice of 23 exhibits. Two of these exhibits are filings from this case, and the remaining exhibits are court orders/rulings from different cases. Therefore, the Court will take judicial notice of these exhibits under Evidence Code section 452, subdivision (d)(1).

DISCUSSION

Here, Plaintiff seeks \$40,865.20
in attorney's fees and costs.

The Court will reduce this
request amount and award \$20,764.20 in total fees and costs for the reasons
stated below.

I.

Reasonable
Rates

When considering each
attorney's history, experience, and expertise, the Court finds the claimed hourly
rates slightly above what is considers reasonable.

There were two attorneys who
worked on Plaintiff's case: Sam Azimtach and Juliana Ter-Haroutunian. Azimtach seeks
an hourly rate of \$550/hour. (See Azimtach Decl., ¶ 11.) Azimtach is the
principal attorney at Azimtach Law Firm, PC. (See *ibid.*) Prior to
founding his firm, Azimtach worked at a lemon law defense firm. (*Id.* at
¶ 7.) Since founding his firm three years ago, Azimtach has handled numerous
lemon law claims against major car manufacturers. (*Id.* at ¶ 8.) Based on
his education and experience, the Court finds a rate of \$500 per hour to be
reasonable.

Juliana Ter-Haroutunian also
seeks an hourly rate of \$550/hour. (Ter-Haroutunian Decl., ¶ 19.)
Ter-Haroutunian is a partner at Azimtach Law Firm, PC. (*Id.* at ¶ 1.)
Prior to joining Azimtach Law Firm, PC., Ter-Haroutunian was a senior associate
at a lemon law defense firm. (*Id.* at ¶ 21.) Ter-Haroutunian has handled
numerous lemon law claims, both on the defense side and plaintiff's side. (*Id.*
at ¶¶ 21-22.) Ter-Haroutunian provides less specific information on her
experience and education. The Court finds a rate of \$450 per hour to be
reasonable.

Given the information
provided as to each attorney's history, experience, and expertise, and the

Courts knowledge of similar rates from other comparable local attorneys, the Court finds the above rates for Azimtash's and Ter-Haroutunian's work to be reasonable. (See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

II.

Reasonable

Hours

Here, Plaintiff's counsel claim 62.7 hours were incurred on this case. This translates to \$33,480 in attorney's fees at the claimed rate. (See Ter-Haroutunian Decl., Exh. C.)

The Court finds these listed hours to be unreasonable, particularly in light of the fact that the case did not have motion practice or meaningful, if any, discovery, let alone get close to trial. Therefore, the Court will reduce and strike specific billing entries.

First, the Court will not award any fees for counsel's pre-retention work. Thus, the Court will strike all time entries prior to 2/23/26 because said work was completed before Plaintiff was officially retained as a client.

The Court will also reduce or eliminate several time entries that are vague, excessive, unnecessary, or which could have been completed by other administrative/clerical personnel. Specifically, the Court will:

1.

Strike

the 2/25/26 time entries where counsel reviewed documents it had already filed with the Court;

2.

Strike

the 4/14/26, 4/15/26, and 5/1/26 time entries where counsel planned and prepared for communications with Defendant and expert;

3.

Strike

the 5/11/26 time entry where counsel planned and prepared for communications with Plaintiff;

4.

Strike

the 6/3/26 time entries where counsel audited all billings;

5.

Reduce

the 6/8/26 and 6/9/26 time entries for drafting this motion to a total of 3.0 hours;

6.

Strike

the 6/10/26 time entry for "finalizing" all motions;

7.

Reduce

the 7/10/26 time entry for drafting memorandum of costs to 0.3 hours;

8.

Reduce

the anticipated time entry to review Defendant's opposition to 1 hour; and

9.

Reduce

the anticipated time entry to draft reply to 2.0 hours

The revised hours at the

approved rates above (and including the 1 hour of paralegal time claimed at the requested rate) leaves a total of \$20,075 in attorney's fees.

Plaintiff claims costs in

the amount of \$689.20. The Court finds these costs to be reasonable and will award them.

III.

Lodestar

Multiplier

Once the court determines the total lodestar amount, said amount may be adjusted through the consideration of various factors, including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award." (Ketchum v. Moses, (2001) 24 Cal.4th 1122, 1132.)

Plaintiff requests a lodestar multiplier of 0.2 because of the contingent nature of this case, the alleged complexity of the case, and the excellent outcome counsel was able to secure. (See Motion, pp. 11:4-6, 12:10-13:5.) However, the Court does not believe this case was complex. While Plaintiff's counsel was successful in negotiating a settlement, it was done very quickly after filing the Complaint with minimal discovery and no motion practice. Under these circumstances, the Court does not find the multiplier reasonable or necessary.

Plaintiff is entitled to reasonable attorney's fees and costs but the Court does not find a basis to apply a multiplier.

CONCLUSION

For these reasons, Plaintiff's Motion for Attorney's Fees is GRANTED. However, the Court will only award \$20,764.20 in total fees and costs.